
8:30 a.m. Law and Motion

BOONE VS. GALVAN, ET AL.

CASE NUMBER: 24CV-0205681

An Order to Show Cause Re: Dismissal (“OSC”) issued on July 20, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff and Counsel, for failure to serve and failure to obtain default judgment pursuant to CRC 3.110(b) and (h). No response to the OSC has been filed. Sanctions have been imposed previously on several occasions and have not been paid. This matter has been continued multiple times to permit Plaintiff to cure the defects. Despite the imposition of sanctions and multiple continuances, Plaintiff has failed to move the case forward. It appears no lesser sanctions would be effective to prompt compliance with the rules of court. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

DOTSON VS. COUNTY OF SHASTA, ET AL.

CASE NUMBER: 26CV-0210377

Tentative Ruling on Demurrer: Defendants demur to each cause of action on the grounds that the Complaint fails to allege facts sufficient to constitute a cause of action against defendants under CCP 430.10(e). The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Renee Belcastro establishes good faith attempts at compliance with the meet and confer requirements.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Plaintiff’s Complaint alleges six causes of action: 1) 42 USC § 1983; 2) 42 USC § 12132; 3) Gov. Code § 815.6; 4) Dependent Adult Abuse WIC § 15610.23; 5) Retaliation 42 USC § 1983; 6) Intentional Infliction of Emotional Distress. Each cause of action simply recites some or all of the elements which must be pled to state a claim, but does not plead any facts in support of each element. This is insufficient to state a claim against any of the Defendants.

42 USC § 1983: To state a claim under this section, Plaintiff must plead deprivation of a federal right, by a person acting under color of state law. “The United States Supreme Court has carved out a limited area of direct municipal responsibility “if the deprivation of rights was caused by an official policy or custom of the county, set by the county’s lawmakers or by an official who speaks